

Rajendra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 24 July 2024 · 2024:AHC:118230-DB · Writ - C No. 23545 of 2024 · **Writ disposed; petitioner relegated to Clause 6.5 objection**

HEADNOTE

A writ challenging an electricity demand notice of Rs. 1,79,494 as illegal and arbitrarily calculated is disposed of without examining the billing merits, with liberty to file an objection to be decided by the issuing officer under Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rajendra Kumar petitioned the Allahabad High Court against a demand notice dated 1 September 2023 issued by the electricity department for recovery of electricity dues of Rs. 1,79,494. He alleged that the demand was illegal and that the respondents had arbitrarily calculated the amount. Counsel for the department submitted that the controversy was a billing dispute and that the petitioner had a remedy under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-objection

HOLDING

A writ challenging an electricity demand notice as illegally and arbitrarily calculated is disposed of without examining the merits, with liberty to the consumer to file an objection against the demand; the issuing officer shall then decide that objection as provided under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging an electricity demand notice of Rs. 1,79,494 as illegal and arbitrarily calculated is disposed of without examining the billing merits, with liberty to file an objection to be decided by the issuing officer under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 1,79,494 WAS ILLEGAL OR ARBITRARILY CALCULATED

Left to decision on a Clause 6.5 objection before respondent no. 3. ¶ 1-4